

Thao argues that the deposition subpoena was “not [a] random discretionary step[] but reasonable and necessary procedural action[] for the successful prosecution of this lawsuit.” (“Thao’s Opposition Papers, pg. 4:24-25.)

Under these circumstances, Thao fails to explain how serving the subpoena unilaterally, without any attempt to meet and confer as per usual in Song-Beverly litigation, was reasonable and necessary. Furthermore, *Seeever v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557 is distinguishable where the depositions took place, but not used at trial.

Accordingly, the Court grants AHM's motion to tax \$79.50 in costs to serve a deposition subpoena and witness fee letter on a third-party independent dealership.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-29-26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Pompa v. Piazza Del Pane, Inc. et al.***
Superior Court Case No. 24CECG03272

Hearing Date: July 1, 2026 (Dept. 502)

Motion: By Plaintiff Vanessa Pompa on Motion for Dismissal of Entire
Action

**If oral argument is timely requested, it will be entertained on
Wednesday, July 15 2026, at 3:30 p.m. in Department 502.**

Tentative Ruling:

To deny, without prejudice. (Lab. Code, § 2699.)

Explanation:

Plaintiff Vanessa Pompa ("Plaintiff") requests the permission of the court to dismiss the entire action, without prejudice, against Piazza Del Pane, Inc. ("Defendant") pursuant to Labor Code section 2699, subdivision (s). Plaintiff must seek permission of the court because the action was filed under the Private Attorney General Act ("PAGA") which requires court approval for actions such as this. The approval requirements legislated into PAGA are intended to "'afford ... protection to employees and the state whose interests are being represented by PAGA litigants.'" [Citation]" (*Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 695.)

On July 31, 2024, the case was filed. On October 3, 2024 Plaintiff stipulated to enter Plaintiff's individual claims into arbitration. (Emran Decl., ¶ 5.) Sometime after November 1, 2024, Plaintiff litigated and reached a settlement with Defendant on Plaintiff's individual claims. (*Id.*, ¶¶ 6-7.) Plaintiff intended to attach the settlement agreement as Exhibit A to the Emran Declaration. (*Id.*, ¶ 7) However, Exhibit A was not attached to the Emran Declaration. A copy of the settlement agreement between Plaintiff and Defendant is not in evidence.

Plaintiff has not provided a reason for the request other than that a private settlement occurred on claims independent from the PAGA claim. In Plaintiff's PAGA claim, Plaintiff is acting on behalf of the state and other employees' interests. Plaintiff suggests that dismissal without prejudice would not prejudice claims by the state or other employees. However, the statute of limitations has run. Actions brought under Labor Code section 2699 have a one year statute of limitations. (Lab. Code, § 2699, subd. (c)(1); Code Civ. Proc., § 340.) Therefore, dismissal of the case with or without prejudice would bar other employees from filing a case for injuries that occurred during the same period of time.

Plaintiff makes no other claims or statements about how dismissal or any other actions taken by Plaintiff serve the interests of the state or other employees. Without a

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 6-30-26.
(Judge's initials) (Date)